FILED
Superior Court of California
County of Los Angeles

OCT 07 2026

David W. Slayton, Executive Officer/Clerk of Court
By: A. Munoz, Deputy

DERRICK LAMONT BEVERLY
In Propria Persona, Sui Juris
1929 Wilcox Avenue, Apt. #1, Los Angeles, California 90068
Telephone: (424) 388-0880
Email: dlb@dlbllclaw.com
Defendant/Appellant, In Propria Persona

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES - APPELLATE DIVISION

FOX NORMANDIE APARTMENTS, LP,
Plaintiff/Respondent,

v.

DERRICK L. BEVERLY,
Defendant/Appellant.

Appellate Division Case No. 26APLC00322-U3
Trial Court Case No. 22STUD06657
26APLC00322 U3

NOTICE OF PROTECTIVE CURE OF APP-103 DEFAULT; PROTECTIVE RE-TENDER OF APP-104; REQUEST TO DISCHARGE OCTOBER 2, 2026 DEFAULT

Appeal from September 2, 2026 postjudgment order

TO THE CLERK OF THE SUPERIOR COURT, THE APPELLATE DIVISION, AND ALL PARTIES:

1. Defendant/Appellant Derrick LaMont Beverly gives notice of immediate protective cure in response to the Clerk's Notice of Default on Appeal dated October 2, 2026. The completed notice identifies the omitted act as failure to timely file the Notice Designating Record on Appeal, Judicial Council form APP-103, and states a correction date of October 19, 2026.

2. Appellant therefore tenders APP-103 within the stated cure period. This protective filing is made to eliminate the identified record-procurement defect and is not a concession concerning the legal effect, timeliness, service, or attempted filing of any earlier record-designation submission.

3. Appellant previously submitted an APP-103-related filing through One Legal on September 9, 2026, Order No. 29222281, Court Transaction No. 26LA01938202. The presently available vendor record reflects court receipt for clerk review followed by rejection. No accepted or file-endorsed APP-103 from that transaction is presently established.

4. Appellant elects a statement on appeal and protectively re-tenders the corrected Proposed Statement on Appeal (APP-104). A contemporaneous Outlook sent-item record establishes electronic transmission of the APP-104 attachment to Respondent's counsel on September 16, 2026 at approximately 4:06 p.m.

5. The September 16 transmission establishes preparation and electronic transmission of the attached APP-104; it does not, standing alone, establish a court filing or acceptance event. Appellant therefore re-tenders APP-104 without conceding that no earlier filing or tender occurred.

6. Appellant requests that the Clerk accept the APP-103 cure, accept and process the APP-104 for statement-on-appeal purposes, discharge the October 2 default upon cure, and return conformed or file-endorsed copies or another written receipt identifying the accepted filings.

7. Appellant proceeds under the presently assigned limited-civil appellate classification to avoid procedural default. Protective compliance does not waive any properly preserved question concerning underlying classification, jurisdiction, appellate route, or record coding.

8. No allegation is made in this cure filing that One Legal, the Court, opposing counsel, or any person caused the absence of a court-side APP-104 acceptance record. Causation remains UNRESOLVED pending competent source records.

Dated: October 7, 2026

/s/ Derrick LaMont Beverly

DERRICK LAMONT BEVERLY

Defendant/Appellant, In Propria Persona